

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Justice Jamal Khan Mandokhail
Justice Irfan Saadat Khan

Criminal Petition No. 706 of 2026

(On appeal from the order dated 18.03.2026 passed by the Lahore High Court, Multan Bench, Multan in CrI. Misc. No. 2076-B/2026)

Jamshaid Rashid

...Petitioner(s)

Versus

The State through Prosecutor General, Punjab and ...Respondent(s)
another.

For the Petitioner(s) : Mr. Muhammad Amir Malik, AOR a/w
petitioner, in person.

For the State(s) : Mr. Irfan Zia, Addl. PG, Punjab
Muhammad Sharif, S.I./IO.

Complainant : In-person

Date of Hearing : 13.05.2026

ORDER

Irfan Saadat Khan, J.- Through this judgment, we intend to dispose of the instant criminal petition arising out of Criminal Petition No. 706 of 2026, which seeks leave to appeal against the order dated 18.03.2026 passed by the learned Lahore High Court, Multan Bench, Multan, in CrI. Misc. No. 2076-B/2026. Through the impugned order, the learned High Court has declined the concession of pre-arrest bail to the appellant, Jamshaid Rashid, in FIR No. 424/2019 dated 14.12.2019, registered at Police Station Darahma, District Dera Ghazi Khan, under Sections 302, 324, 337A(ii), 337F(i), 337L(2), 148, and 149 of the Pakistan Penal Code, 1860 (PPC).

2. According to the contents of the FIR, the occurrence took place on 13.12.2019 at approximately 06:00 p.m., in the area of Mouza Kotla Sikhani, District Dera Ghazi Khan. The complainant, Muhammad Siddique, along with his brothers Abdullah, Muhammad Abbas (now deceased), were traveling on a rickshaw, when they were intercepted by 20 unknown persons

duly armed with *sotas* (wooden sticks) and hatchets (*kulharis*). The assailants launched a sudden assault, causing multiple blunt and sharp injuries to the complainant, Abdullah, and Muhammad Abbas on various parts of their bodies. Muhammad Abbas, however, succumbed to the wounds/injuries. The present petitioner, Jamshaid Rashid, was not nominated in the text of the initial FIR however on the statement of the witnesses was nominated in the present occurrence that he has actively participated in the crime. The petitioner's pre-arrest bail application was dismissed by the learned Additional Sessions Judge, Dera Ghazi Khan on 17.01.2026. His subsequent prayer for bail was turned down by the High Court vide order dated 18.03.2026 in CrI. Misc. No. 2076-B/2026, though he was previously granted ad interim pre-arrest bail by the High Court, which was later on dismissed vide order dated 11.2.2026 for non-appearance. The petitioner then filed second bail application which too was dismissed leading to the present petition.

3. Mr. Muhammad Amir Malik, learned ASC appearing on behalf of the petitioner, Jamshaid Rashid, contended that the petitioner is innocent and has falsely been implicated in the instant case due to clear *mala fide* intent following a communal dispute. He emphasized that there is an unexplained delay in roping the petitioner into the case, as he was subsequently roped in through a supplementary statement (*Tatamma*) recorded by the local police on 21.12.2019. He stressed that the subsequent identification of the petitioner by the complainant and eye-witnesses during a purported supplementary procedure on 21.12.2019 at Chowk Chourhata, D.G. Khan, is a physical and logical impossibility. In support of this contention, the learned counsel adverted to the verified travel history obtained from the Federal Investigation Agency (FIA), submitting that the petitioner departed from Pakistan for Saudi Arabia on 15.12.2019 and was not inside the territorial jurisdiction of Pakistan on the day of his alleged identification. He further argued that the case falls within the ambit of 'further inquiry' as

envisaged under Section 497(2) of the Cr.P.C., thereby entitling the petitioner for the concession of bail. Additionally, the learned counsel adverted to the rule of consistency, arguing that three co-accused persons namely Sadam Hussain, Javed Iqbal and Shah Jahan with identical allegation have already been granted bail by the courts below, thereby entitling the petitioner for the same concession.

4. On the other hand, the counsel for the complainant party, as well as the State, have opposed the instant bail petition on the grounds that the offence falls within the prohibitory clause and that a precious life has been lost. They further contended that the petitioner is explicitly named in the supplementary statement and was the principal participant in the crime. Hence, in their view, the said action of the accused disentitles him to any leniency, and they pray that this bail petition may, therefore, be dismissed.

5. We have carefully considered the arguments from both the sides, evaluated the record and on a tentative assessment find as under:

I. **Alibi, Documentary Evidence, and the Scope of Preliminary**

Inquiry: It is a settled principle of criminal jurisprudence that while a plea of alibi is a matter of defense to be thoroughly evaluated by the Trial Court after recording of the evidence, the Courts cannot close their eyes to undisputed, certified public documents that falsify the very foundation of the prosecution's claim at the bail stage. The prosecution asserts that the complainant and eye-witnesses physically identified the appellant in person on 21.12.2019 at Chowk Chourhata, D.G. Khan however, the verified travel history of the appellant shows that he left Pakistan on 15.12.2019 for Saudi Arabia. The prosecution could not explain as to how an accused physically absent from the country could be spotted and identified at a local intersection in Dera Ghazi Khan? This absolute contradiction leaves the matter of the appellant's

participation wide open to "further inquiry" as envisaged under Section 497(2) Cr.P.C. The proposition is now well settled that bail can be granted in a case of capital charge on the plea of alibi, if peculiar facts and circumstances of that case so justify. Reference in this regard may be made to the decision in *Ajmal Khan v. Liaqat Hayat and another* (PLD 1998 SC 97).

- II. **Implication via Supplementary Statement (*Tatamma*):** It is an undeniable fact that the appellant was not nominated in the FIR and implication through a supplementary statement is a weak piece of derivative evidence unless corroborated by unimpeachable independent materials. When a supplementary statement introduces an entirely new set of accused persons days after the occurrence, it must be viewed with a high degree of judicial caution. In our view, points to consultation, deliberation, and an afterthought to rope in opposing faction or widen the net of accusations is to be dealt with great care and caution.
- III. **The Rule of Consistency:** The record indicates that three co-accused persons, namely, Sadam Hussain, Javed Iqbal and Shah Jahan against whom similar generalized allegations of carrying *sotas* and contributing to the unlawful assembly were made, have already been granted bail by the courts below. Following the Rule of Consistency, as articulated by this Court in *Abdul Mateen Mehboob v. The State* (2026 SCMR 135), when the roles bodily attributed to the petitioner are strikingly similar to those already extended leniency or found entitled to bail, the denial of bail would result in an asymmetric and unjust application of the law. Judicial consistency is not merely a matter of form but a substantive constitutional imperative under Article 25 of the Constitution, ensuring equal protection of the law and preventing the arbitrary fragmentation of criminal liability among similarly situated individuals.
- IV. **Protection of Liberty and *Mala Fide* Implication:** The remedy of pre-arrest bail under Section 498 Cr.P.C. is an extraordinary equitable relief meant to protect innocent citizens from the

humiliation of arrest arising out of ulterior motives, *mala fides*, or an abuse of the state machinery. Given the physical impossibility of the prosecution's identification story and the clear attempt to expand the number of accused via an afterthought statement, the element of *mala fides* and a desire to humiliate the appellant is floating on the surface of the record.

6. We, therefore, without touching upon the merits of the case, are of the considered view that the petitioner-accused has been successful in making out a case for grant of bail. We, therefore, convert this petition into an appeal and allow the same. The appellant is granted pre-arrest bail, subject to his furnishing bail bonds in the sum of Rs. 100,000/- with one surety in the like amount to the satisfaction of the trial court. Needless to state that the observations made above are only tentative in nature and should not prejudice the case of either party at Trial Court stage.

7. These are the reasons of our short order dated 13.05.2026, which is reproduced hereinbelow:

"For the reasons to be recorded later, the petition is converted into an appeal and is allowed. The appellant is granted pre-arrest bail subject to his furnishing bail bonds in the sum of Rs. 1,00,000/- with one surety in the like amount to the satisfaction of the Trial Court."